

Rodolphe Gruchy	+33 647568635	rodolphe.gruchy-ext@pandrol.com
Alison OLIVIER	+33 (0)3 27 99 93	alison.olivier@pandrol.com

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Ship-to Address
SDM Expédition
105 Rue Paul Foucaut
59450 SIN-LE-NOBLE
France
service@sdm59.com
Delivery Schedule
8H-12H/13H-16H

SUZHOU SUDELAN RAILWAY PARTS CO.,LTD.
N°9 Donghuan rd
Fuqiao Town
TAICANG CITY
Jiangsu Province
Chine

Your reference	SO2500246 - FRANCE via sdm
Technical Ref	2024-Q3408
Supplier No.	F02654

Currency USD

Line No.	Part Number	Description	Location Code	Lead time *	Qty	Unit Price	Net amount
10	NBVT0026	18/02 : (1) updated city for the incoterm 18/02 : (1) updated delivery address + intructions + QUANTITY ----- TIREFOND GS54-B5 - ELECTROZINGUE Finition : Zn blanc/gris légèrement irisé Plan No. : E225054 AD.1 + E225235 F UIC864-1-O (janvier 1982) ELECTROZINGUE - ISO 4042 (sept-2018) ACIER CLASSE 5.6 SHIPPING MARKS TO BE INDICATED ON PALLETS + DELIVERY NOTE / BL COMMANDE SUDELAN CA2501005 / SO2500246 - FRANCE VIA SDM QUANTITY + DESCRIPTION No BATCH / TOTAL BATCH FAT BY KELLY OR TIM ACKNOWLEDGEMENT OF ORDER Please send us your acknowledgement of order two days after reception at the latest. Without any news from your side, we will consider you agree with indicated pices and lead time. PROCÉDURE 1 CONTRÔLE QUALITÉ 3.1 INSPECTION CONDITIONS : According to our quality instructions PANDROL IQ 03 Rév. C :A certificate of conformity	652	17/03/25	2 500 PCE	0,770	1 925,000

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Type 3.1 (according to NF en 10204) including the coating cert must be sent to our Quality Control Department 4 days before doing the shipment
Contact : christophe.conrardy@pandrol.com

LATE DELIVERY PENALTIES
0.5% per late day starting from the 2nd day on the concerned quantity amount (10% at the most)

Please send INVOICES to
APDouai@pandrol.com
by indicating our PO number

The supplier agrees that a PANDROL's or customer's representative may attend to partial or entire control operations.

FOR STEEL PRODUCTS PLEASE PROVIDE FOR EACH SHIPMENT (EXCEPT FOR EUROPEAN SUPPLIER) :

A certificate established on letterhead with your stamp, the date and the signature of an authorized person stipulating that "The steel products listed in Annex XVII that they export do not incorporate products steel products originating in Russia listed in Annex XVII to Regulation EU) No 833/2014" or any other proof that you can provide.

* Lead time according to Incoterm indicated

Packing : Emballage compris

INCOTERM : Ex Works

SUDELAN CHINE

Payment Terms : International bank transfer - 60 days date of invoice

Total Excl. VAT (USD) : 1 925,000

Discount granted :

Discounted total : 1 925,000

VAT Amount 0% :

Total Amount Incl. VAT 1 925,000

Order Comments :

Les factures sont à transmettre par email uniquement au service comptabilité

Raismes & Petite Forêt > apraismes@pandrol.com

Douai > apdouai@pandrol.com

Important: This purchase order shall be processed in accordance with general buying terms.

PANDROL SAS - SAS with capital of 15 851 323€ - 389670142 RCS Valenciennes

VAT Reg. No. : FR00389670142 - EORI No. : FR38967014200030

Rue du Bas Pré - zone industrielle - 59590 RAISMES - FRANCE

Phone No. : +33 3 27 22 26 26 - Fax No. : + 33 3 27 22 26 00

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Purchase Terms and Conditions

1- GENERAL CLAUSE -

Unless otherwise agreed by the Parties, only the special terms and conditions which appear on the purchase orders and these General Terms and Conditions of Purchase of the Purchaser (defined as any entity affiliated with the DELACHAUX Group) will apply to any other document communicated before or after the purchase order. The act of fulfilling the order implies full acceptance of these terms and conditions by the supplier.

2- ACKNOWLEDGMENT OF RECEIPT OF ORDER –

The Supplier shall acknowledge receipt of any order by sending an acknowledgement of receipt to the address of the Purchaser's purchasing department which issued the order within three working days from receipt of the order by the supplier. Upon expiry of this **period, the supplier shall be deemed to have definitively accepted the order.** Any reservations expressed by the supplier must be expressly accepted by the Purchaser for the order to be effective with regard to the supplier.

3- ORDERS – DELIVERY TIME FRAME –

The product's contractual delivery date appears in the order: it is the date on which the supplier undertakes to make the said product (in quantity and quality) available to the Purchaser at the address given in the order.
The Purchaser must be notified in writing of any delay due to a case of force majeure as defined by the jurisprudence of the Court of Cassation immediately upon occurrence of the event.
The Purchaser reserves the right to modify the original quantities and delivery dates unless the supplier expressly objects within three days. Any deliveries made earlier than the date listed in the Purchaser's order will be accepted only with the prior consent of the Purchaser.

4- QUALITY – PRODUCT INSPECTIONS BEFORE SHIPPING –

The supplier is responsible for the quality of the products and services provided. It undertakes to provide products and services that comply with the specifications defined and accepted by the Parties, as well as the supplier quality requirements, if such requirements were provided to it by the Purchaser.
No products may be shipped without prior verification by the supplier of their compliance with the specifications listed in the Purchaser's order.

5- DELIVERY – SHIPPING – FREIGHT –

Any shipment sent to the Purchaser will be covered by a packing slip drawn up by the supplier, bearing all the information required to identify the packages (including the order reference, description, quantity and merchandise references, shipping method, shipping company and delivery location).
This packing slip must accompany the packag.
The packing slip may be invoked against the Purchaser only if it bears the seal of the purchase order issuer and the signature of a person duly authorized to sign such a purchase order; the list of these persons may be requested from the Purchaser upon simple demand.
However, because quantity and quality controls are performed after delivery, the supplier must not construe any release signature or seal as unreserved acceptance of the delivery. Any shipment which is not accompanied by a delivery slip or which upon inspection is revealed to be non-compliant with the specifications (in terms of quantity and quality) for the Purchaser's order may, at the Purchaser's discretion, be rejected or returned at the expense and risk of the supplier, and the Purchaser will not be liable for any missing elements or advances.
If no delivery terms are included in any special terms and conditions listed in the order, the supplier shall be responsible for delivery and insurance of the products to the location indicated by the Purchaser.

6 - PACKAGING –

All packaging must be carefully prepared and suitable for the products and shipping conditions. The supplier is responsible for any damage due to improper packaging. If the products are delivered in packaging owned and consigned by the supplier, this packaging must be listed on a separate packing slip.

7 – TITLE TRANSFER AND RISK TRANSFER –

Title Transfer takes place upon completion of the order, notwithstanding any title retention clauses, which can be invoked against the Purchaser only if signed by an authorized representative of the Purchaser.
Unless otherwise stipulated in the order, risk transfer always occurs at delivery of the goods to the location indicated in the order.

8 - PRICE –

Unless otherwise expressly indicated in the order, the prices listed in the order are firm and definitive, i.e. they cannot be adjusted based on changing market conditions. They include shipping, the packaging required to maintain the product in good condition during storage, as well as appropriate packing for shipping pursuant to the previous clauses.
For products purchased ex works, unless otherwise indicated in the purchase order, the supplier will be responsible for packaging and shipping on behalf of the Purchaser on the best terms; the costs incurred will be paid by the supplier and then invoiced to the Purchaser at cost.

9 - INVOICES –

Invoices are prepared by the supplier following delivery. They are drawn up in two copies and must be sent to us within five days following delivery to the address on the order. They must include the following elements: "supplier code," "order number," "packing slip number," "product reference," and "delivery location".

10 - PAYMENT –

Unless otherwise stipulated in the order, no advances will be paid at order placement and invoices will be paid by LCR within forty-five (45) days from the end of the month or sixty (60) days from the invoice date.
The amount paid includes any late delivery penalties, calculated pursuant to the provisions of article 11.
Any disputes by the Purchaser regarding the price invoiced or the goods delivered may give rise to a debit note which will be deducted from future payments.

11 - LATE DELIVERIES - LATE DELIVERY PENALTIES - PENALTY CLAUSE

In the case of delayed delivery or failure to deliver by the supplier, any delivery made after the date listed on the purchase order or set by agreement between the Parties or any other date expressly accepted by the Purchaser shall as of right result in the application of a penalty equal to 0,25 % of the amount of the order per working days with a two days deductible with respect to the corresponding order. The amount of the penalties can't be superior to 10% of the amount of the order and the penalties can be accompanied by additional costs, direct and / or indirect, suffered by the Buyer because of the delay. The amount of these penalties shall be deducted from future payments as indicated in article 10. These penalties will be payable upon request of the Buyer and without prior notice. The amount of these penalties will be deducted from the payments as indicated in Article 10.

12 - WARRANTY –

Without prejudice to the legal provisions, particularly regarding hidden defects, the supplier must, at its own expense, diligently and fully remedy any defects in design, materials, manufacturing and assembly for a period of no less than twenty-four (24) months from the date of initial use of the product by the Purchaser and remedy any consequences of these defects.
Notwithstanding the clause above, the Purchaser's suppliers act in place of the Purchaser to guarantee their merchandise for the Purchaser's customers, subject to the same conditions and periods as those applied by the Purchaser in its warranties on its own equipment, conditions of which the supplier has confirmed its awareness.
Orders placed by the Purchaser for the performance of public procurement contracts automatically imply acceptance by the supplier of the warranty conditions applied to the Purchaser under the said public procurement contracts.
If the supplier is unable to properly perform this clause, the Purchaser reserves the right to have the necessary work done at the supplier's expense, without prejudice to the termination clause.

13 – INTELLECTUAL PROPERTY AND CONFIDENTIALITY –

The supplier undertakes to keep all technical and commercial elements to which performance of the contract gives it access fully confidential.
Unless otherwise stipulated in the order, the drawings, plans and models partially or fully designed by the Purchaser and of which the supplier has knowledge for fulfillment of the order remain the property of the Purchaser and must be returned to the Purchaser at delivery for final payment.
Unless otherwise agreed and stated in the order, all tooling, including branding and markings, specially manufactured for the purpose of the order is the property of the Purchaser if invoiced. It must always be individualized.
These various designs, models, plans and tooling will be insured by the supplier until delivery.

14 - ETHICS –

The Supplier agrees to fully comply with any applicable anti-bribery law. The Delachaux Group is a proud signatory of the United Nations Global Compact and commits to ethical behavior. Our Code of Ethics is accessible at www.delachaux.com.

15 - TERMINATION

The Purchaser may terminate the order without prejudice to its other rights and without liability vis-à-vis the supplier: 1) In the event of failure by the supplier to perform any of its obligations under the order, fifteen (15) days after formal notification sent to the supplier by electronic registered letter with acknowledgement of receipt remains without effect, the Purchaser may terminate the order as of right, with no legal formalities, or have the provisions/products/work provided by a third-party company at the supplier's expense. 2) In the event that the provisions/products/services ordered were intended for sale or provision as part of a contract between the Purchaser and a customer, termination of the said contract will terminate the order as of right, with no prior notification or legal formalities, with no compensation for the supplier beyond the costs incurred for the products scrapped. 3) In the event of the opening of bankruptcy or dissolution proceedings against the supplier or of its sale to or takeover by a third party.

16 - INSURANCE

The supplier will take out and maintain insurance coverage of all risks that it may run or generate through its contractual obligations from a company known to be solvent, including a waiver of any recourse against the Purchaser, its agents and its insurers. The supplier will, at the Purchaser's request, provide the Purchaser with evidence that it has taken out and maintains such insurance. If the supplier's insurance policies include contractual deductibles, these will be paid by the supplier.

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Purchase Terms and Conditions

17 – LABOR LAW – EMPLOYMENT REGULATIONS – SPECIAL REGULATIONS

The employees assigned by the supplier to the execution of the product and/or service will remain under the supplier's control. The supplier undertakes to fulfill all its legal obligations under current labor law, including the payment of all payroll taxes and other contributions, and must provide proof to the Purchaser of:

- Professional correspondence showing its name, full address, and Companies and Trade Registry number;
- A civil liability insurance certificate;
- A statement in which the supplier certifies that the work will be done by legally employed persons

The supplier must comply with the employment regulations and the special regulations which apply in the place of execution of the product and/or service. The supplier will, in particular, comply with all discretionary constraints to ensure that the service is provided and the order fulfilled in an orderly manner

18 – VENDOR CERTIFICATIONS AND INSTRUCTIONS

The supplier affirms that it has all the ISO certifications required for proper performance of its obligations. The products and/or services shall be delivered with all the instructions, recommendations, warnings, and other indications required for proper use and optimal protection of individuals and property, all the more so if the products contain dangerous substances or require special safety precautions. In particular, the supplier will provide the Purchaser with all the indications, instructions, and warnings required to comply with the applicable legal and regulatory provisions on health, safety and the environment, and will compensate the Purchaser for all consequences, complaints and expenses caused by the supplier's non-compliance with this obligation.

19 - COMPLIANCE

Personal Data: The supplier will comply with any applicable regulation when collecting any personal data in connection with the acceptance and/or performance of any sale (or of any Purchase Order). Personal data so collected may be the subject of automatic data processing for the sole purposes of sale management and follow-up, and for marketing purposes. Access to said personal data shall only be granted to the Buyer and its affiliates. Regulations and Economic Sanctions: The parties agree to fully comply with export control and trade sanctions laws and regulations, rules and permits, including without limitation those of the United States and the EU, as well as the buyer procedure available on www.delachaux.com. Amongst other thing, the Supplier will ensure that neither it nor any of its affiliates will use, sell, resell, export, re-export or otherwise process the Products / Services, directly or indirectly, to any country, destination or person, in violation of export control rules and trade sanctions

20 - DISPUTES –APPLICABLE LAW –

French law alone shall apply to the settlement of any disputes arising from the interpretation or performance of our orders. The Parties expressly agree that, in the event of the dispute, the local Court of the purchase order issuer's site shall have sole jurisdiction, whether the dispute originates in France or abroad, even in the case of an incidental claim or multiple defendants